

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SUMMONS

-----X
BRANDON CORTEZ,

Index No.: _____
Date Filed: _____

Plaintiff

Plaintiff designates Bronx
County as the place of trial

- against -

The basis of the venue is
where the tort arose

CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JOSUE
BATISTA (shield # 21940) and POLICE OFFICER
DANIEL COLLAZO (shield # 21266),

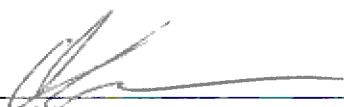
Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: NEW YORK, N.Y.
August 05, 2020

LAW OFFICES OF DAVID J. KRESMAN
Attorneys for Plaintiff
BRANDON CORTEZ
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New York, New York 10001
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by 
David J. Kresman

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THE NEW YORK CITY POLICE DEPARTMENT
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POLICE OFFICER JOSUE BATISTA (shield # 21940)
One Police Plaza
New York, NY 10038

POLICE OFFICER DANIEL COLLAZO (shield # 21266)
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
BRANDON CORTEZ

Plaintiff

Index No.:

Date Filed:

Verified Complaint

- against -

CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JOSUE
BATISTA (shield # 21940) and POLICE OFFICER
DANIEL COLLAZO (shield # 21266),

Defendants.
-----X

Plaintiff **BRANDON CORTEZ** by his attorneys, **THE LAW OFFICES OF DAVID J. KRESMAN**, complaining of the defendants, **CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOSUE BATISTA (shield # 21940) and POLICE OFFICER DANIEL COLLAZO (shield # 21266)**, respectfully alleges, upon information and belief, as follows:

PARTIES

1. At all times hereinafter mentioned, Plaintiffs **BRANDON CORTEZ** (“CORTEZ”) was and is a resident of the County of Bronx and the State of New York.
2. At all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** (“CITY”), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, **THE NEW YORK CITY POLICE DEPARTMENT** (“POLICE”), was and is an agency of Defendant **CITY**.

4. At all times hereinafter mentioned, Defendant, POLICE OFFICER JOSUE BATISTA (shield # 21940) ("P.O. BATISTA"), was and is a police officer employed by Defendant CITY.

5. At all times hereinafter mentioned, Defendant, POLICE OFFICER DANIEL COLLAZO (shield # 21266), ("P.O. COLLAZO"), was and is a police officer employed by Defendant CITY.

BACKGROUND

6. On June 9, 2019, at approximately 5:50 p.m., in the vicinity of Bussing Avenue and Edson Avenue in Bronx County, without just cause or provocation, a motor vehicle owned by Defendants CITY and POLICE and operated by defendant P.O. COLLAZO came into contact with and struck the plaintiff herein, causing physical injuries to the plaintiff. Thereafter, defendants P.O. COLLAZO and P.O. BATISTA approached the plaintiff and struck him about his body. Thereafter, defendants P.O. COLLAZO and P.O. BATISTA violently handcuffed the Plaintiff and intentionally and falsely accused the Plaintiffs of having committed the crimes of Reckless Driving, Harassment in the 2nd Degree, Leaving the scene of an accident and related charges.

7. The Plaintiff remained in custody until he was released on or about June 10, 2019.

8. The Plaintiffs has had to defend against false charges.

PROCEDURAL POSTURE

9. On June 27, 2019, and within the time prescribed by law, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the

Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

10. On July 11, 2019, and within the time prescribed by law, Plaintiff served an Amended Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

11. On or about December 05, 2019 the court granted plaintiffs application to file a late notice of claim and plaintiffs Second Amended Notice of Claim was deemed timely filed nunc pro tunc.

12. Said claims were presented to defendant CITY within ninety (90) days after the cause of action herein occurred.

13. More than thirty days have elapsed since service of said notices and defendant CITY has failed to pay or adjust this claim.

14. That the Plaintiff has complied with the request of the Municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law, with the 50-H hearing having been held on November 16, 2019.

15. This action has been commenced within one year and ninety days after the cause of action accrued.

16. The Plaintiffs have duly complied with all conditions precedent to the commencement of this action.

AS AND FOR A FIRST CAUSE OF ACTION FOR PLAINTIFF FOR FALSE

IMPRISONMENT

17. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this Complaint numbered "1" through "16" with the same force and effect as through more fully set forth at length herein.

18. Plaintiff was aware of his arrest and confinement as described in paragraphs 6-8, and Plaintiff CORTEZ did not consent to that arrest or confinement.

19. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order or other legal right.

20. As a result of being falsely imprisoned by the Defendants, Plaintiff CORTEZ sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

AS AND FOR A SECOND CAUSE OF ACTION FOR PLAINTIFF FOR MALICIOUS

PROSECUTION

21. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this Complaint numbered "1" through "20" with the same force and effect as through more fully set forth at length herein.

22. In arresting Plaintiff CORTEZ, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff. The Defendants, including P.O. COLLAZO and P.O. BATISTA, provided incomplete and misleading information to the NYPD and Bronx District Attorney's Office to ensure that Plaintiff would be arrested and prosecuted.

23. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained

multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

AS AND FOR A THIRD CAUSE OF ACTION FOR PLAINTIFF FOR BATTERY

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this Complaint numbered "1" through "23" with the same force and effect as through more fully set forth at length herein.

25. When P.O. BATISTA and P.O. COLLAZO struck, came into contact with, and violently grabbed Plaintiff, searched Plaintiff and arrested Plaintiff, the defendants subjected Plaintiff CORTEZ to a harmful or offensive bodily contact. P.O. BATISTA and P.O. COLLAZO intended to make that contact without the consent of Plaintiff.

26. As a result of being battered by P.O. BATISTA and P.O. COLLAZO, Plaintiff CORTEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

AS AND FOR A FOURTH CAUSE OF ACTION FOR PLAINTIFF FOR ASSAULT

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this Complaint numbered "1" through "27" with the same force and effect as through more fully set forth at length herein.

28. P.O. BATISTA , acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact when he approached Plaintiff, violently grabbed Plaintiff and handcuffed Plaintiff.

29. As a result of being assaulted by P.O. BATISTA, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

30. P.O. COLLAZO, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact when he approached Plaintiff, violently grabbed Plaintiff and handcuffed Plaintiff.

31. As a result of being assaulted by P.O.COLAZZO, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

AS AND FOR A FOURTH CAUSE OF ACTION FOR PLAINTIFF FOR NEGLIGENCE

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this Complaint numbered "1" through "31" with the same force and effect as through more fully set forth at length herein.

33. On June 09, 2019, Defendant CITY was the owner of a certain police motor vehicle motor operated by defendant P.O. COLLAZO.

34. On June 09, 2019, Defendant CITY controlled, maintained, managed and supervised a certain police motor vehicle motor operated by defendant P.O. COLLAZO.

35. On June 09, 2019, Defendant POLICE was the owner of a certain police motor vehicle motor operated by defendant P.O. COLLAZO.

36. On June 09, 2019, Defendant POLICE controlled, maintained, managed and supervised a certain police motor vehicle motor operated by defendant P.O. COLLAZO.

37. On June 09, 2019, Defendant P.O. COLLAZO operated the aforementioned police motor vehicle while in the course of his employment with defendant CITY.

38. On June 09, 2019, Defendant P.O. COLLAZO operated the aforementioned police motor vehicle while in the course of his employment with defendant POLICE.

39. That at all times hereinafter mentioned, Bussing Avenue at/near its intersection with Edson Avenue was and still is a public roadway and/or thoroughfare in the County of Bronx and State of New York.

40. On June 09, 2019, Plaintiff CORTEZ was operating a certain motorcycle/motorbike bearing New York State license plate number 12JS17.

41. On June 09, 2019, the above referenced police motor vehicle operated by defendant P.O. COLLAZO was traveling at the aforementioned location.

42. On June 09, 2019, the aforementioned motor vehicle operated by plaintiff CORTEZ was traveling at the aforementioned location.

43. That on June 09, 2019, at the aforesaid location, there was physical contact and a collision between the aforementioned police motor vehicle operated by defendant P.O. COLLAZO and the aforementioned motorcycle/motorbike bearing New York State license plate number 12JS17 operated by plaintiff CORTEZ.

44. That as a result of the aforesaid contact and collision, Plaintiff sustained serious and permanent personal injuries.

45. The aforesaid contact and occurrence and the resulting injuries were caused solely and wholly by reason of the negligence and carelessness of the defendants CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICER DANIEL COLLAZO (shield # 21266), jointly and severally, in their ownership, operation, maintenance, supervision and control of their motor vehicle; in causing, permitting, and/or allowing their motor vehicle to come into contact with the plaintiff and the plaintiffs vehicle; in failing to keep their motor vehicle under proper control; in failing to drive their motor vehicle with due regard to the position of other motor vehicles on the public way; in failing to keep a

proper lookout for and to take heed and cognizance of other motor vehicles on the public way; in failing to look; in failing to see; in failing to yield the right of way; in operating their vehicle without due regard for to rights and safety of the plaintiff; in operating their motor vehicle in a manner that unreasonably endangered the plaintiff; in failing to properly steer, guide, manage and control their motor vehicle; in operating their vehicle at unsafe and unreasonable rate of speed; in failing to keep their vehicle in the proper lane of traffic; in failing to apply and/or maintain the braking system of their motor vehicle so as to avoid said occurrence; in failing to be and remain alert while driving; in failing to use that degree of care, caution and prudence required under the circumstances then and there existing; in omitting and failing to provide and/or equip and make use of and/or keep in proper working order and/or permit timely use of adequate and efficient brakes, braking mechanisms, acceleration, steering devices, signaling devices and other mechanisms of the instant motor vehicles under the prevailing circumstances of the roadway and traffic conditions at the point or space of accident; in failing stop, slow down and heed to the traffic control device at the subject intersection; in operating their motor vehicle at a rate of speed greater than what was reasonable and proper at the time and place of occurrence; in entering the aforementioned intersection with out stopping/yielding to a stop sign; in failing to yield to the plaintiff; in entering the aforementioned intersection without using/operating the vehicle's lights and sirens; in failing to heed and obey the traffic rules and regulations at and governing the operation of motor vehicles in the State of New York including but not limited to the applicable sections of the New York State Vehicle and Traffic Law, including but not limited to Vehicle and Traffic Law Section 1104 and the New York City Traffic Rules; in failing to slow down as may be necessary for safe operation of their vehicle; In operating their motor vehicle without due regard for the for the safety of all persons, and

particularly the plaintiff herein; in operating their motor vehicle with a reckless disregard for the safety of others, and particularly the plaintiff herein.

46. That defendant CITY and POLICE are vicariously liable for negligent acts of its vehicle's driver, defendant P.O. COLLAZO.

47. That defendants CITY and POLICE are vicariously liable for negligent acts of their employee, defendant P.O. COLLAZO.

48. That solely as a result of the defendants negligence and carelessness, the plaintiff was caused to suffer severe and serious personal injuries to his mind and body, and further, that the plaintiff was subjected to great physical pain and mental anguish, as a result of the negligence, carelessness and recklessness of the defendant in causing this accident.

49. The aforesaid occurrence was caused by the negligence of the defendants, without any culpable conduct on the part of the plaintiff CORTEZ contributing thereto.

50. The limitations set forth in CPLR Section 1601 do not apply by reason of one or more of the exceptions of CPLR Section 1602, and more specifically 1602(6).

51. That as a result of the foregoing, plaintiff CORTEZ suffered a serious injury as defined in Section 5102(d) of the Insurance Law of the State of New York and has sustained economic loss in excess of basic economic loss as defined in subsection (a) of section 5102 of the Insurance law of the State of New York.

52. That as a result of the foregoing, plaintiff, CORTEZ suffered a serious injury and has sustained economic loss in excess of basic economic loss greater than basic economic loss as to satisfy the exceptions to section 5104 of the Insurance law of the State of New York.

53. As a result of the foregoing, plaintiff CORTEZ sustained serious, severe and permanent personal injuries and was rendered sick, sore, lame, and disabled; plaintiff caused to

suffer great pain, discomfort, and disability and, upon information and belief, will continue to suffer pain, discomfort, and disability in the future; plaintiff was caused to undergo hospital and medical care, aid and attention, and upon information and belief, may continue to require to undergo medical care, aid and attention for a long period of time to come in the future; plaintiff was obliged to expend and incur large sums of monies for medical care, aid and attention and, upon information and belief, will continue to be obliged to expend and incur large sums of monies for future medical care, aid and attention; plaintiff was caused to become incapacitated from his usual vocation and avocation, and upon information and belief, may continue to be caused to remain away from his usual vocation and avocation for a long period of time to come in the future.

54. By reason of the foregoing, the plaintiff has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

WHEREFORE, plaintiff demands judgment against the defendants CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOSUE BATISTA (shield # 21940) and POLICE OFFICER DANIEL COLLAZO (shield # 21266), on each and every cause of action contained herein in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, together with the cost and disbursements of this matter, and such other and further relief as to this Court seems just and proper.

Dated: NEW YORK, N.Y.
August 05, 2020

by 
David J. Kresman
LAW OFFICES OF DAVID J. KRESMAN

Attorneys for Plaintiff
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New York, NY 10038

POLICE OFFICER DANIEL COLLAZO (shield # 21266)
One Police Plaza
New York, NY 10038

LAW OFFICES OF DAVID J. KRESMAN**ATTORNEYS VERIFICATION**

David J. Kresman, an attorney and counselor at law, duly admitted to practice in the Courts of the State of New York and a member with the law firm of **LAW OFFICES OF DAVID J. KRESMAN**., attorneys for Plaintiff **BRANDON CORTEZ**, herein, affirms the following to be true under penalties of perjury:

I have read the foregoing **COMPLAINT**, and upon information and belief, I believe the matters alleged therein to be true.

The reason this verification is made by affirmant and not by plaintiffs is that plaintiffs were not in the county where affirmant's office is located at the time the Complaint was prepared.

The source of your affirmant's information and belief are communications, papers, reports and investigations contained in affirmant's file.

Dated: New York, New York
August 05, 2020



DAVID J. KRESMAN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BRANDON CORTEZ,

Index No:

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JOSUE
BATISTA (shield # 21940) and POLICE OFFICER
DANIEL COLLAZO (shield # 21266)

Defenants

SUMMONS AND VERIFIED COMPLAINT

Law Offices of David J. Kresman*Attorneys for : Plaintiff(s)*

7 Penn Plaza

370 Seventh Avenue, Suite 720

New York, NY 10001

(212)563-1100

To
Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated,

ATTORNEY(S) FOR

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRYthat the within is a (certified) true copy of an _____ duly entered in the
office of the clerk of the within named court on _____ 200__.☐ NOTICE OF SETTLEMENTthat an order _____ of which the within is a true copy
will be presented for settlement to the HON. _____ one of the judges of the
within named Court, at _____ on _____ 200__
at _____ O'clock ____ M.

Dated, _____

Yours, etc.

LAW OFFICES OF DAVID J. KRESMAN